

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 38-013

Amendments to Title 5 of the Chickasaw Nation Code (General Sentencing)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for sentencing, and

WHEREAS, the Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendments to Title 5, Chapter 7, Section 5-701.2 and Section 5-701.3 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 5-701.2

SENTENCE.

~~Sentence shall be set forth as follows:~~

~~1A.~~ Sentence shall be imposed without unreasonable delay in accordance with the provisions of the criminal statute or ordinance violated and this Act. ~~Pending sentence, the Court may commit the Defendant to jail or continue or alter the bail. Before imposing sentence, the Court shall allow counsel an opportunity to speak on behalf of the Defendant and shall address the Defendant personally and ask him if he wishes to make a statement on his own behalf and to present any information in mitigation of punishment.~~ .
Sentencing shall be imposed on all offenses pursuant to the Chickasaw Nation Code. Where the Court in its discretion deems it appropriate, a form of customary and cultural traditional punishments according to Tribal Common Law may be imposed in addition to or in place of any punishment provided in the Chickasaw Nation Code.

~~2B.~~ After imposing sentence, the Court shall inform the Defendant of his right to appeal, and if so requested, shall direct the Clerk to file a notice of appeal on behalf of the Defendant. At any time after a notice of appeal is filed, the Court may entertain a motion to set bail pending appeal.

~~3C.~~ Time served in jail prior to the judgment and sentence and ~~while awaiting or during trial~~ may be allowed as a credit toward any sentence of imprisonment in the discretion of the Judge **consistent with applicable law.**

~~4D.~~ Sentences may be imposed to run concurrently or consecutively **consistent with applicable law.**

SECTION 5-701.3

GENERAL SENTENCING PROVISIONS.

Statement of Policy. The sentencing policy of the Chickasaw Nation in criminal cases is to strive toward restitution and reconciliation of the offender and the victim and the Chickasaw Nation. While one goal of sentencing is to impress upon the wrongdoer the wrong he has committed, the paramount goal is to restore the victim and Chickasaw Nation to the position that existed prior to the commitment of the offense, and to restore the offender to harmony with them and the community by requiring him to right his wrongdoing. Therefore, with consideration of these goals in mind, the provisions of this Section shall govern sentencing for criminal offenses.

~~A. — Unless the Court determines that the ends of justice will not be served thereby, or that a civil action will more adequately adjudicate damages in the specific case at hand, then in addition to any sentence otherwise provided by law the Court shall:~~

~~1. — order the offender to pay restitution to the victim in money, property, or services; and/or~~

~~2. — order the offender to pay restitution to the Chickasaw Nation in money, property, or services.~~

~~B. — In effectuating the Chickasaw Nation sentencing policy, if the offender recognizes the wrong he has committed and earnestly repents of such wrong, the Court, paying particular attention to prior offenses, in its discretion may:~~

~~1. — allow such offender to exchange actual work performed for the Chickasaw Nation in lieu of a fine or imprisonment, at the rate of eight (8) hours of work per twenty-five dollars (\$25) of fine;~~

~~2. — place the offender on probation under such reasonable conditions as the Court may direct for a period not exceeding three (3) times the amount of the maximum sentence allowed;~~

~~3. — defer entering the judgment and imposing sentence for a period not exceeding four (4) times the maximum sentence allowed on condition that if the defendant violated no law and satisfies such other reasonable conditions such as restitution as may be imposed, the plea or verdict of guilty will be withdrawn and said charges will be dismissed;~~

~~4. — allow the offender to pay a fine in goods or commodities at the fair market value of the goods or commodities to be surrendered, provided that the Chickasaw Nation shall not reimburse the offender for any excess value of the property surrendered; or~~

~~5. — any combination of the above which the Court feels is proper and necessary.~~

A. Sentencing Considerations. Consideration in sentencing include:

1. The offense(s) committed;
2. The prospects of rehabilitation of the Defendant;
3. The circumstances under which the offense was committed;
4. The criminal history of the Defendant;
5. The safety of the community, victim, or the Defendant;
6. Statements of the victim;
7. Alternatives to imprisonment of the Defendant;
8. The ability of the Defendant to pay a fine; and
9. Any other consideration the Court deems relevant.

B. Penalties and Consequences. A Defendant found guilty or pleaded guilty or nolo contendere to an offense may be sentenced to one or more of the following penalties and/or consequences:

1. Imprisonment for a period of time not to exceed the maximum permitted for the offense;
2. A fine in an amount not to exceed the maximum permitted for the offense;
3. Community service;
4. Any diagnostic, therapeutic, or rehabilitative measures, treatments, or services deemed appropriate;
5. Restitution to a victim of an offense for which the Defendant was convicted;

6. Suspension of all or part of the sentence for a reasonable time, not to exceed the maximum time permitted for the offense, under such terms imposed by the Court;

7. Deferred imposition of sentence for a period not exceeding four (4) times the maximum sentence allowed with reasonable restrictions and conditions monitored by the probation officer;

8. Supervised or unsupervised probation;

9. A prohibition from owning or carrying a dangerous weapon;

10. Restriction of the Defendant's freedom of movement;

11. Restriction of the Defendant's freedom of association;

12. If employed, to remain employed and, if unemployed, to actively seek employment;

13. Subjection to search of their residence, vehicle, and person; and

14. Any requirement or limitation intended to improve the mental or physical health or marketable skills of the Defendant.

C. **Pre-Sentence Report.** The Court may order or consider any pre-sentence reports offered by the parties. The Defendant and the Defendant's counsel shall be afforded an opportunity to examine any pre-sentence report and to cross-examine the preparer of such report on the basis for any sentencing recommendations contained in the report.

D. **Imposition of Sentence.** No sentence shall be imposed until:

1. The Prosecutor and Defendant have had an opportunity to present evidence, witnesses, and an argument regarding the appropriateness of a sentencing option; and

2. The Judge has given the Defendant an opportunity to inform the Court of any extenuating or mitigating circumstances which should be considered by the Court.

E. **Incarceration.** If the Defendant is sentenced to imprisonment, the Defendant shall be discharged from custody after satisfactorily fulfilling the conditions of the imposed sentence or earlier upon order of the Court.

F. **Post-Imprisonment Supervision.** The Court may include in the sentence of any person who is convicted of a crime and sentenced to a term of confinement greater than one year a term of post-imprisonment supervision. The post-imprisonment supervision shall be for a period of one (1) year following release of confinement of the person and shall be served under

conditions prescribed by the supervising department. Should the Defendant fail to comply with the restrictions and conditions of post-imprisonment supervision, the Defendant may be sanctioned to serve a term of imprisonment of up to six (6) months.

G. **Restitution.** When restitution is ordered, the Court shall specify the amount, method of payment, and payment schedule. The Defendant may request a hearing before restitution is ordered.

H. **Payment of Fines and Restitution.** All monies collected as the result of a fine or restitution imposed by the Court shall be paid to the Court. Upon receiving the monies:

1. A receipt shall be issued to the paying person;
2. The account of the Defendant shall be credited, noting whether the fine is paid in full or what balance, if any, remains due; and
3. Restitution shall be paid to whom it is owed upon application or upon order of the Court.

I. **Fixing and Collection of Costs.** Upon conviction or judgment of any offense, costs will be assessed to the Defendant as established by the Court. In an exceptional case, the Court may waive costs. Such costs shall be payable to the Court Clerk, and may include: witness fees; cost of service of Court papers; and any other costs sustained by the Court in connection with the matter.

SECTION 5-701.4

RESERVED PROBATION; VIOLATIONS OF THE RULES, RESTRICTIONS AND CONDITIONS OF PROBATION; DISMISSAL AND EXPUNGEMENT AFTER DEFERRED SENTENCE.

A. **Probation Office.** In the event the Court orders the Defendant to supervised probation, the probation office shall be responsible for the following:

1. explaining the conditions specified by the Court and provide the Defendant with the rules of probation;
2. aiding the Defendant to bring about improvements in their conduct and condition;
3. monitoring Defendant's compliance with the rules and conditions of probation and report any violations of conditions of release to the Prosecutor;
4. imposing remedial measures to cure violations of conditions; and
5. performing any other duty that the Court may order.

B. Violations of Conditions of Probation. If a Defendant violates a restriction or condition of probation, then the Prosecutor may move the Court to accelerate a deferred sentence or revoke a suspended sentence. The motion shall set forth the grounds describing such violations by the Defendant. The Prosecutor may issue the Defendant a summons to appear or seek an arrest warrant from the Court. The Court shall set the matter for hearing within 30 days after the entry of the plea of not guilty to the motion, unless waived by both the Prosecutor and the Defendant. The Prosecutor shall prove by a preponderance of the evidence the Defendant violated the restrictions or conditions of probation. Upon a finding of a violation of a restriction or condition of probation, an appropriate sanction may be ordered, including imposition of sentence. The Defendant shall have no right to a trial by a jury for violations of conditions of probation.

C. Failure to Pay Fine.

1. If a Defendant sentenced to pay a fine fails to make payment as ordered, the Court, on its own accord, may order that the Defendant show cause why sanctions should not be imposed for failure to pay.

2. Show Cause Hearing. Notice of a show cause hearing shall be served on the Defendant personally or by first class mail at the address provided by the Defendant at least five days prior to the date set for hearing. In the event service is not obtained or Defendant fails to appear at the hearing, the Court may issue a bench warrant. If the Court determines that the Defendant's nonpayment was attributable to an intentional refusal to obey the Court's order or that the Defendant failed to make a good faith effort to make the ordered payments, then the Court may impose sanctions, including incarceration. If the Court determines that the Defendant's nonpayment was not attributable to an intentional refusal, the Court may modify the original sentence, judgment, or order, allowing the Defendant additional time to pay the fine or reducing the amount owed. Nothing contained herein prohibits the Prosecutor from filing a motion for violations of conditions of probation.

D. Failure to Pay Restitution.

1. If a Defendant sentenced to pay restitution fails to make payment as ordered, the Prosecutor may move that the Defendant show cause why sanctions should not be imposed for failure to pay.

2. Show Cause Hearing. Notice of a show cause hearing shall be served on the Defendant personally or by first class mail at the address provided by the Defendant at least five days prior to the date set for hearing. In the event service is not obtained or Defendant fails to appear at the hearing, the Court may issue a bench warrant. If the Court determines that the Defendant's nonpayment was attributable to an intentional refusal to obey the Court's order or that the Defendant failed to make a good faith effort to make the ordered payments, the Court may impose sanctions, including incarceration. If the Court determines that the Defendant's nonpayment was not attributable to an intentional refusal, the Court may modify the original sentence, judgment or order,

allowing the Defendant additional time to pay the restitution. Nothing contained herein prohibits the Prosecutor from filing a motion for violations of conditions of probation.

E. **Dismissal and Expungement after Deferred Sentencing.** Whenever the Court has deferred the imposition of sentence, and after expiration of the period of deferral and the Defendant's successful completion of any conditions of deferral, upon motion by the Court, the Defendant, or the Defendant's counsel, the Court shall allow the Defendant to withdraw his or her plea of guilty or strike the verdict or judgment expunging the Court records of all record of the proceedings by entering an order of dismissal of charges and expungement, inscribing each record of the proceedings with the word "Expunged" and sealing the file.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on February 19, 2021, by a vote of 12 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur:  Date: FEB 22 2021
Bill Anoatubby, Governor
The Chickasaw Nation

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 38-013
Amendments to Title 5 of the Chickasaw Nation Code
(General Sentencing)

Explanation:

This resolution amends two sections in Title 5. The two sections address the general sentencing powers of the Chickasaw Nation's courts in criminal cases. The amendments more specifically address the sentencing of criminal offenders, and imposing alternatives to incarceration such as probation and traditional punishments.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature